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Provision of February 13, 2025
Register of provisions
No. 63 of February 13, 2025

THE GUARANTOR FOR THE PROTECTION OF PERSONAL DATA

IN the meeting held today, attended by
Prof. Pasquale Stanzione, President, Prof.
Ginevra Cerrina Feroni, Vice President, Dr.
Agostino Ghiglia, and Attorney Guido Scorza, members, and
Dr. Claudio Filippi, Deputy Secretary General;

HAVING REGARD to Regulation (EU) 2016/679 of the European Parliament
and of the Council, of April 27, 2016 (hereinafter, "Regulation");

HAVING REGARD to the Code regarding the protection of personal data, containing provisions for the
adaptation
of the national legal system to Regulation (EU)
2016/679 (Legislative Decree of June 30, 2003, No. 196, as
amended by Legislative Decree of August 10, 2018, No. 101, hereinafter "Code");

HAVING REGARD to the complaint submitted pursuant to Article 77 of
the Regulation by Ms. XX against D.e.c.
soc. coop.;

HAVING EXAMINED the documentation on file;

HAVING REGARD to the observations made by the Secretary
General pursuant to Article 15 of the Guarantor's regulation No. 1/2000;

REPORTING Attorney Guido Scorza;

PREMISE

1. The complaint against the company and the investigative activity.
By complaint dated November 25, 2022, Ms. XX reported alleged violations of the Regulation by
D.e.c. soc. coop. (hereinafter, the Company),
regarding the continued activation of the individualized email address XX, assigned within the
employment relationship, after the
termination of the relationship itself, which occurred on
September 29, 2022.

In particular, the complaint stated that,

after the termination of the employment relationship,
the interested party requested the deactivation
of the same account on November 7 and 11, 2022.

In response to the aforementioned request, the Company communicated that "the account is already
deactivated for any

outgoing operations and is already subject to
redirection to another temporary address in order
not to lose priority in the relationship with clients and
suppliers" (note of November 15, 2022, Annex 2 to the complaint).

The complaint therefore requested the Authority
to declare the processing consisting of the continued activity of the corporate account unlawful.

The Company, in responding to a request for
information sent by the Authority, stated in a note dated February 24, 2024 that:
the employment relationship with the complainant

"terminated on September 29, 2022, effective from September 30, 2022, by virtue of a settlement

agreement”;

“after the termination of the employment relationship, the Employer was able to ascertain that the employee had made an [...] ‘irregular’ use of the email account [...], presumably to convey sensitive information and data externally from the company that should have remained confidential and that, as such, deserved to be recovered”;

the email address subject to the complaint “was immediately deactivated at the time of the termination of the employment relationship for so-called ‘outgoing’ mail, while for incoming mail, its redirection to another internal email address was temporarily arranged solely to avoid losing relationships and

communications of interest to the company with clients, suppliers, and partners”;

“Once the migration of all data of business interest was completed [...] the account was definitively deactivated and retired in April 2023”;

the Company attached a copy of a corporate regulation for the use of the IT system “which has been made known to employees of DEC (including the complainant herself) for express delivery with signature for acknowledgment and receipt.”

2. The initiation of the procedure for the adoption of corrective measures and the Company’s submissions.

On May 2, 2024, the Office notified the Company of the alleged violations of the Regulation found, with reference to Articles

5, paragraph 1, letters a) and c) and 13 of the Regulation, pursuant to Article 166, paragraph 5, of the Code.

In defensive memoranda sent on June 3, 2024, the Company represented that:

“the company [became] aware of the ‘conveyance’ of confidential information, and moreover sensitive, simply due to the [...] ‘improper’ use that the complainant made of the DEC email box by sending to all members of the same, on the last day of her employment, a communication [...] for which a formal complaint had to be filed” (note of June 3, 2024, p. 2);

the email address subject to the complaint “was deactivated immediately after the termination of the employment relationship for ‘outgoing’ mail, while for incoming mail, its temporary redirection to another internal email address was arranged solely to avoid losing relationships and communications of interest to the company with clients, suppliers, and partners, and once the migration of business interest data was completed (an operation that presented some technical difficulties), the account was definitively deactivated and retired in April 2023” (note cited, p. 3);

the aforementioned email address “was never used to send messages of any kind precisely because it was deactivated for outgoing” (note cited, p. 3);

the Company “had prepared an appropriate internal regulation [...] regarding the use of the company email” (cited note, p. 5).

During the hearing requested by the Company, which took place on September 24, 2024, it clarified, among other things, that:

- “on her last day of work, the complainant sent, via the aforementioned email address, a communication to all the shareholders of the Company, about two hundred individuals and legal entities, in which she represented from her point of view the reasons for the termination of the employment relationship, making some significant accusations against the management of the Company, particularly against some individuals directly involved”;

- “At this point, the President deemed it necessary to protect his position with respect to all the shareholders, especially since following this email the Company was inundated with requests for clarification from the shareholders. Following these events, the IT technician appointed by the Company decided to set up the complainant’s email address in such a way as to recover incoming mail without any outgoing activity. This was because the complainant, as the head of the administrative

office, maintained contacts with all shareholders, collaborators, clients, business partners, maintenance personnel, and others on behalf of the Company. Therefore, the complainant held a central role in the Company for which she worked for fifteen years, and for this reason, the utmost attention was paid to protect both the Company and the complainant herself";

- "In this context, the complainant's email address was redirected to the address XX and at the same time the Company contacted all its clients and collaborators inviting them to use this address for communications with the Company. Once these communications were completed, the complainant's account was deleted."

3. The outcome of the investigation and the procedure for the adoption of corrective and sanctioning measures. Violation of Articles 5, paragraph 1, letters a) and c), and 13 of the Regulation.

As a result of the examination of the statements made to the Authority during the procedure as well as the documentation acquired, it appears that the Company, as the data controller, carried out certain processing operations related to the complainant that are not compliant with the regulations on the protection of personal data.

In this regard, it is highlighted that, unless the act constitutes a more serious offense, anyone who, in a proceeding before the Guarantor, falsely declares or certifies news or circumstances or produces false acts or documents is liable under Article 168 of the Code "Falsehood in declarations to the Guarantor and interruption of the execution of the tasks or the exercise of the powers of the Guarantor."

Based on the elements acquired during the investigative activity (referred to in the previous paragraphs) as well as the subsequent assessments of this Department, it has been established that the Company, after the termination of the employment relationship with the complainant, that is, starting from September 30, 2022, kept the individualized account previously assigned to the complainant active until April 2023.

As stated by the Company itself, the account indeed remained active "inbound" (thus it was not deactivated) through redirection to another company account for the declared purpose of "not losing relationships and communications of any kind of business interest with clients, suppliers, and shareholders" as well as to recover "sensitive information and data" that would have been "likely [...] conveyed externally" by the complainant herself.

In particular, this conveyance of "information and data" externally, according to the Company, would have occurred during the sending by the complainant of an email to the shareholders of the Company, in which the "reasons for the termination of the employment relationship were represented, making some significant accusations against the management of the Company."

The processing carried out through the account subject to the complaint, after the termination of the employment relationship of the interested party, does not appear adequate and proportionate to the declared purposes.

In fact, it has emerged that, through the redirection, the Company accessed through its representatives for a significant period of time (about seven months) the content of the messages received at the email address previously assigned to the complainant, well beyond what would have been necessary to "not lose relationships and communications" with clients and suppliers, while it remains that, regarding relationships with shareholders, these are ordinarily managed by the reference company through specific channels different from mere receipt of emails by the administrative office.

Moreover, the Company itself, according to its statements, had at the same time contacted clients and collaborators inviting them to use a specific company email address to maintain contacts and conduct communications.

Furthermore, it is noted that, contrary to what the Company asserted in its defenses, in the specific case there is no link between the sending of the email to the shareholders by the complainant just before the termination of the employment relationship (the contents of which prompted the Company to file a complaint) and the need to keep active the account from which the message was sent.

Lastly, it is highlighted that the account remained active, despite the complainant having expressly requested its deactivation (on the 7th and the 11th).

November 2022, as documented in the records).

Whereas, in general terms, the exchange of electronic correspondence—whether related to work activities or not—on a company account of an individualized type constitutes an operation that allows for the knowledge of certain personal information related to the data subject (see "Guidelines of the Authority for Electronic Mail and the Internet," 1/3/2007, in G.U. no. 58 of 10.3.2007, specifically point 5.2, letter b), the Authority has already deemed it compliant with the principles of necessity and minimization that after the termination of the employment relationship, the data controller should proceed with the removal of the account following its deactivation and the simultaneous adoption of automatic systems aimed at informing third parties and providing them with alternative addresses related to their professional activity (see, among others, most recently: Provision of April 27, 2023, in www.garanteprivacy.it, web doc no. 9909235; Provision of March 9, 2023, no. 68, web doc no. 9877754). This is also to protect third parties sending communications, whose expectation of confidentiality does not appear to have been safeguarded in the specific case.

In accordance with what the Authority has established in similar cases, therefore, the legitimate purpose of maintaining contacts with one's partners, clients, and suppliers could have been pursued with less invasive treatments (partly adopted simultaneously, as highlighted above) and, therefore, compliant with data protection regulations, compared to what was implemented in the present case. Furthermore, at the conclusion of the proceedings, it emerged that the Company had not previously informed the complainant regarding the management of the email address after the termination of the employment relationship, given that the company regulation for the use of the IT system, provided in copy by the Company and dated August 2, 2016 (see attached to the Company's note of 24/2/2024), does not provide anything in this regard.

The conduct of the Company, as established, has therefore violated the principle of data minimization (art. 5, par. 1, letter c) of the Regulation), according to which the data controller must process only data that is "adequate, relevant, and limited to what is necessary in relation to the purposes for which they are processed."

For the aforementioned reasons, the principles of fairness and transparency (art. 5, par. 1, letter a) of the Regulation) are also violated, according to which personal data must be processed in a manner that is "fair and transparent to the data subject," and art. 13 of the Regulation, which establishes that the data controller is obliged to provide the data subject with essential information regarding the processing they intend to carry out.

4. Conclusions: declaration of unlawfulness of the processing. Corrective measures pursuant to art. 58, par. 2, Regulation.

For the aforementioned reasons, in light of what has been overall observed, the Authority believes that the statements, documentation, and reconstructions provided by the data controller during the investigation do not allow for overcoming the objections notified by the Office with the initiation of the proceedings and are therefore unsuitable to allow for the archiving of the present proceedings, as none of the cases provided for by art. 11 of the Authority's Regulation no. 1/2019 apply.

The processing of personal data carried out by the Company, specifically the redirection—for a significant period of time—of the individualized email address after the termination of the employment relationship with the complainant, moreover in the absence of prior, suitable information regarding the management of email in the work context, is indeed unlawful, in the terms outlined above, in relation to arts. 5, par. 1, letters a) and c), and 13 of the Regulation.

The violation established in the terms of the motivation cannot be considered "minor," taking into account the nature of the violation that concerned the general principles of processing, the severity and duration of the violation itself, the degree of responsibility, and the manner in which the supervisory authority became aware of the violation (see Recital 148 of the Regulation).

The Authority has also deemed that the level of severity of the violation is medium, in light of all relevant factors in the specific case, particularly the nature, severity, and duration of the violation, considering the nature, object, or purpose of the processing in question as well as the number of

affected data subjects and the level of damage they suffered. The Authority has also taken into account the criteria relating to the intentional or negligent nature of the violation and the categories of personal data affected by the violation as well as the manner in which the supervisory authority became aware of the violation (see art. 83, par. 2 and Recital 148 of the Regulation).

Therefore, in view of the corrective powers conferred by art. 58, par. 2 of the Regulation, an administrative monetary fine is imposed pursuant to art. 83 of the Regulation, commensurate with the circumstances of the specific case (art. 58, par. 2, letter i) Regulation).

5. Adoption of the injunction order for the application of the administrative monetary fine and accessory sanctions (arts. 58, par. 2, letter i), and 83 of the Regulation; art. 166, paragraph 7, of the Code).

At the conclusion of the proceedings, it appears that D.e.c. soc. coop. has violated arts. 5, par. 1, letters a) and c), and 13 of the Regulation. For the violation of the aforementioned provisions, the application of the administrative monetary fine provided for by art. 83, par. 5, of the Regulation is foreseen.

The Authority, pursuant to art. 58, par. 2, letter i) of the Regulation and art. 166 of the Code, has the ****Power to Impose an Administrative Financial Penalty****

pursuant to Article 83 of the Regulation, through the adoption of an injunction order (Article 18, Law No. 689 of November 24, 1981), in relation to the processing of personal data carried out by D.e.c. soc. coop., the unlawfulness of which has been established, as outlined above.

It is deemed necessary to apply paragraph 3 of Article 83 of the Regulation, which states that “If, in relation to the same processing or to related processing, a data controller [...] violates, with intent or negligence, various provisions of this regulation, the total amount of the administrative financial penalty shall not exceed the amount specified for the most serious violation,” the total amount of the penalty is calculated so as not to exceed the maximum amount provided for by the same Article 83, paragraph 5.

With reference to the elements listed in Article 83, paragraph 2 of the Regulation for the purpose of applying the administrative financial penalty and its quantification, it is considered that the level of severity of the penalty is medium, taking into account that the penalty must “in any case [be] effective, proportionate, and dissuasive” (Article 83, paragraph 1 of the Regulation). It is represented that, in this case, the following circumstances have been considered:

- a) in relation to the nature of the violation, it involved cases punished more severely under Article 83, paragraph 5, of the Regulation due to the interest protected by the violated norms (general principles of processing);
- b) in relation to the duration of the violation, the extensive duration of the same has been considered, which lasted for about seven months;
- c) with reference to the intentional or negligent nature of the violation and the degree of responsibility of the data controller, the conduct of the Company and the degree of its responsibility have been taken into account, as it did not comply with the regulations regarding data protection concerning multiple provisions;
- d) in favor of the Company, account has been taken of its cooperation with the Supervisory Authority, the fact that the established violation concerned only the complainant, and the deletion of the email account that was the subject of the complaint.

It is also believed that the economic conditions of the offender are relevant in this case, considering the aforementioned principles of effectiveness, proportionality, and dissuasiveness to which the Authority must adhere in determining the amount of the penalty (Article 83, paragraph 1, of the Regulation), primarily based on the revenues obtained by the Company concerning the ordinary financial statements for the year 2023.

In light of the above elements and the assessments made, it is deemed appropriate, in this case, to impose on D.e.c. soc. coop. an administrative penalty of a payment of an amount equal to €20,000 (twenty thousand).

In this context, it is also considered that pursuant to Article 166, paragraph 7, of the Code and Article 16, paragraph 1, of the Garante Regulation No. 1/2019, the publication of this section containing the injunction order on the Garante's website should proceed. This is in consideration of the type of violations established that concerned the general principles of processing.

****ALL OF THE ABOVE CONSIDERED, THE Garante****

establishes the unlawfulness of the processing carried out by D.e.c. soc. coop., represented by its legal representative, with registered office at Via Emilia Ovest, 54/2, Rubiera (RE), Tax Code 02090570355, pursuant to Article 143 of the Code, for the violation of Articles 5, paragraph 1, letters a) and c), and 13 of the Regulation;

****ORDERS****

pursuant to Article 58, paragraph 2, letter i) of the Regulation, D.e.c. soc. coop. to pay the sum of €20,000 (twenty thousand) as an administrative financial penalty for the violations indicated in this provision;

****INSTRUCTS****

therefore the same Company to pay the aforementioned sum of €20,000 (twenty thousand), according to the methods indicated in the annex, within 30 days from the notification of this provision, under penalty of the adoption of subsequent executive acts in accordance with Article 27 of Law No. 689/1981. It is reminded that the offender retains the option to settle the dispute by paying – always according to the methods indicated in the annex – an amount equal to half of the imposed penalty, within the term provided for the submission of the appeal as indicated below (Article 166, paragraph 8, of the Code);

****DISPOSES****

pursuant to Article 166, paragraph 7, of the Code and Article 16, paragraph 1, of the Garante Regulation No. 1/2019, the publication of the injunction order on the Garante's website;

pursuant to Article 154-bis, paragraph 3 of the Code and Article 37 of the Garante Regulation No. 1/2019, the publication of this provision on the Garante's website;

pursuant to Article 17 of Regulation No. 1/2019, the annotation of the violations and the measures adopted in accordance with Article 58, paragraph 2 of the Regulation, in the internal register of the Authority provided for by Article 57, paragraph 1, letter u) of the Regulation.

Pursuant to Article 78 of the Regulation, as well as Articles 152 of the Code and 10 of Legislative Decree No. 150/2011, an appeal against this provision may be made to the ordinary judicial authority, with an application filed at the ordinary court of the place identified in the same Article 10, within thirty days from the date of communication of the provision itself, or sixty days if the appellant resides abroad.

Rome, February 13, 2025

****THE PRESIDENT****

Stanzione

****THE REPORTER****

Scorza

****THE DEPUTY SECRETARY GENERAL ****

Filippi